

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2074
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3603.01, Arizona Revised Statutes, is amended
3 to read:

4 13-3603.01. Partial-birth abortions: classification: civil
5 action; definitions

6 A. Any physician who knowingly performs a partial-birth abortion
7 and thereby kills a human fetus is guilty of a class 6 felony and shall be
8 fined under this title or imprisoned not more than two years, or both.

9 B. This section does not apply to a partial-birth abortion that is
10 necessary to save the life of a mother whose life is endangered by a
11 physical disorder, physical illness or physical injury, including a life-
12 endangering physical condition caused by or arising from the pregnancy
13 itself.

14 C. The father of the fetus if married to the mother at the time she
15 receives a partial-birth abortion procedure and the maternal grandparents
16 of the fetus if the mother is not at least eighteen years of age at the
17 time of the partial-birth abortion may bring a civil action to obtain
18 appropriate relief unless the pregnancy resulted from the plaintiff's
19 criminal conduct or the plaintiff consented to the partial-birth abortion.
20 Relief pursuant to this subsection includes the following:

21 1. Money damages for all injuries, psychological and physical,
22 resulting from the violation of this section.

23 2. Statutory damages in an amount equal to three times the cost of
24 the partial-birth abortion.

25 D. AN INDIVIDUAL WHO IS EMPLOYED BY, CONTRACTS WITH OR VOLUNTEERS
26 IN A MEDICAL FACILITY AND WHO HAS DIRECT KNOWLEDGE THAT A PARTIAL-BIRTH
27 ABORTION IS BEING PERFORMED OR HAS BEEN PERFORMED SHALL IMMEDIATELY REPORT
28 THAT KNOWLEDGE TO THE COUNTY ATTORNEY IN THE COUNTY WHERE THE PROCEDURE

1 OCCURS OR OCCURRED. THE REPORT SHALL INCLUDE ALL IDENTIFYING INFORMATION
2 THAT IS KNOWN TO THE REPORTING INDIVIDUAL REGARDING THE PHYSICIAN AND
3 MEDICAL FACILITY INVOLVED. AN INDIVIDUAL WHO FAILS TO REPORT AS
4 PRESCRIBED IN THIS SUBSECTION IS GUILTY OF A CLASS ~~[2-MISDEMEANOR]~~ [6
5 FELONY].

6 ~~D.~~ E. This section shall not subject a woman upon whom a
7 partial-birth abortion is performed to any criminal prosecution or civil
8 liability.

9 ~~E.~~ F. A defendant who is accused of an offense under this section
10 may seek a hearing before the Arizona medical board if the defendant is
11 licensed pursuant to title 32, chapter 13 or the Arizona board of
12 osteopathic examiners in medicine and surgery if the defendant is licensed
13 pursuant to title 32, chapter 17 on whether the physician's conduct was
14 necessary to save the life of the mother whose life was endangered by a
15 physical disorder, physical illness or physical injury, including a
16 life-endangering physical condition caused by or arising from the
17 pregnancy itself. The findings on that issue are admissible, in the
18 court's discretion, on that issue at the trial of the defendant. On a
19 motion of the defendant, the court shall, in its discretion, delay the
20 beginning of the trial for not more than thirty days to permit a hearing
21 to take place.

22 ~~F.~~ G. For the purposes of this section:

23 1. "Partial-birth abortion" means an abortion in which the person
24 performing the abortion does both of the following:

25 (a) Deliberately and intentionally vaginally delivers a living
26 fetus until, in the case of a headfirst presentation, the entire fetal
27 head is outside the body of the mother or, in the case of breech
28 presentation, any part of the fetal trunk past the naval is outside the
29 body of the mother for the purpose of performing an overt act that the
30 person knows will kill the partially delivered living fetus.

31 (b) Performs the overt act, other than completion of delivery, that
32 kills the partially delivered living fetus.

33 2. "Physician" means a doctor of medicine or a doctor of osteopathy
34 who is licensed pursuant to title 32, chapter 13 or 17 or any other
35 individual legally authorized by this state to perform abortions. Any
36 individual who is not a physician or who is not otherwise legally
37 authorized by this state to perform abortions but who nevertheless
38 directly performs a partial-birth abortion shall be subject to this
39 section.

40 Sec. 2. Legislative intent

41 A. The legislature finds that partial-birth abortion is never
42 medically necessary to preserve the life of a mother. Advances in modern
43 medicine have eliminated any circumstance in which intentionally
44 delivering and killing a living child partway through birth is required to
45 save a woman's life. The previous exception for so-called life of the
46 mother cases created a false loophole, exploited by abortion providers to

1 disguise elective procedures as emergencies. That exception is therefore
2 eliminated.

3 B. The legislature further finds that accountability cannot rest
4 solely on the physician who performs the procedure. A physician who
5 commits this crime has no incentive to self-report. For that reason, all
6 medical personnel, including doctors, nurses, technicians and volunteers,
7 who have direct knowledge of a partial-birth abortion are required to
8 report that information to law enforcement. Failure to report is itself
9 an offense, because silence in the face of this brutality enables
10 lawbreaking and shields perpetrators from justice.

11 C. The legislature rejects the notion that a woman should be exempt
12 from all civil or criminal liability in relation to a partial-birth
13 abortion. While compassion is due to women in crisis, the gravity of this
14 procedure requires a legal framework that recognizes the reality: a child,
15 partially delivered, is deliberately killed. Allowing such acts without
16 accountability devalues the life of the unborn child and undermines the
17 very foundation of equal protection under the law.

18 Enroll and engross to conform
19 Amend title to conform

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